

attorneys' fees in the operative Complaint are deemed STRICKEN.

2. The moving party shall prepare the proposed order after hearing.

8. 9:00 AM CASE NUMBER: C25-03542

CASE NAME: DEMETRIA JOHNSON VS. SONIC WALNUT CREEK M INC

TO SET ASIDE DEFENDANT SONIC WALNUT CREEK M, INC., DBA MERCEDES-BENZ OF WALNUT CREEK AND LONG BAO NGOS DEFAULT

FILED BY: SONIC WALNUT CREEK M INC

TENTATIVE RULING:

Before the Court is Defendants Sonic Walnut Creek M, Inc. dba Mercedes-Benz of Walnut Creek ("Sonic") and Long Bao Ngo's Motion to Set Aside Defaults.

Procedural Background

Plaintiff filed the Complaint on December 5, 2025. A Proof of Service of Summons was filed on March 2, 2026, indicating that Defendant Ngo was personally served on February 4, 2026. A second Proof of Service of Summons was filed on March 16, 2026, indicating that Sonic was served by personal service on February 6, 2026. Thereafter, on March 16, 2026, Plaintiff sought and default was entered against both Defendants.

Defendants filed the instant motion to set aside on April 23, 2026.

Legal Standard

Defendant moves to set aside the default judgment pursuant to California Code of Civil Procedure section 473 (b). "The statute includes a discretionary provision, which applies permissively, and a mandatory provision, which applies as of right." (*Minick v. City of Petaluma* (2016) 3 Cal.App.5th 15, 25.) "Although this bifurcation is not demarcated in any internal subtitling, it is plainly evidence in the textual structure of the statute." (*Ibid.*) Defendants move under the mandatory provision.

The 'mandatory' provision, which Defendants rely upon, relates to times when an attorney admits fault in causing the default. This provision is set forth in the later portion of the statute:

Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect.

"[T]he court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect vacate any ... resulting default [or default judgment] ... entered against his or her client...." (Code Civ. Proc. § 473, subd. (b).)

Analysis

Defendants filed their motion to set aside approximately six weeks after the defaults were entered. Thus, Defendants' motion is timely.

Along with the motion, Defendants filed a declaration from counsel indicating that due to a "calendaring error and workload-related oversight on [his] part, [he] failed to file a responsive pleading by" the appropriate deadlines. (Robinett Decl. ¶ 3.) He did not notice the error until April 16, while preparing to have an associate attorney attend the initial Case Management Conference. (*Ibid.*) He also immediately drafted an answer and attempted to have it filed. (*Ibid.*)

Counsel then attempted more than once to contact Plaintiff to obtain a stipulation to set aside the default so that the matter could proceed without need for motion practice. (¶ 4.) Plaintiff did not respond to any of these efforts. (*Ibid.*)

Plaintiff argues that "relief under section 473 is not automatic" and that Defendants bear the "burden of demonstrating both diligence and excusable neglect." (Opp. at 3:9-10.) Plaintiff is mistaken on all counts given that Defendants are moving under the mandatory provision of section 473. To begin with, when a motion for relief is based on attorney fault, there is no need to "show diligence in seeking relief, [instead the] motion is timely if filed within six months of entry of the default judgment or dismissal." (*Younessi v. Woolf* (2016) 244 Cal.App.4th 1137, 1147 citing *Milton v. Perceptual Development Corp.* (1997) 53 Cal.App4th 861, 868.) The motion was filed well within the six-month deadline.

As to the need to show excusable neglect, under the "traditional *discretionary* provisions of section 473, a party seeking relief on the basis of its attorney's neglect must show that the neglect was *excusable*." (*Metropolitan Service Corp. v. Casa de Palms, Ltd.* (1995) 31 Cal.App.4th 1481, 1487.) An entirely different standard exists under the mandatory relief provisions in section 473. "These *require* the court to grant relief if the attorney admits neglect, even if the neglect was *inexcusable*." (*Ibid.*) Thus, Defendant is not required to show excusable neglect and the Court must grant relief if the attorney admits neglect.

Relief under CCP § 473, subdivision (b) does not require Counsel to explain why he made the mistake, nor does it require him to show that the mistake was excusable. (*Martin Potts & Associates, Inc. v. Corsair, LLC* (2016) 244 Cal.App.4th 432, 439-440 "[T]he text of section 473 subdivision (b) does not require an explanation of reasons as a prerequisite to mandatory relief.") Accordingly, 473(b) "at most demand[s] an attorney's candid, full, and straightforward acknowledgment of his or her error; they do not speak to the reasons for those errors." (*Ibid.*) "In other words, the purpose of the mandatory relief provision under section 473, subdivision (b) is achieved by focusing on *who* is to blame, *not why*." (*Id.* at 439 italics in original)

The declaration submitted by Defendants' counsel is sufficient as a "candid, full, and straightforward acknowledgment of his or her error." (*Id.* at 441.) He clearly made a mistake by failing to properly calendar the date for filing any responsive pleading. Upon realizing his error, he attempted to work with Plaintiff to remedy the error. Receiving no response from Plaintiff he promptly filed the instant motion.

Conclusion

Defendants' motion to set aside the defaults is **GRANTED**. Defendants shall file their responsive pleading within 10 days of notice of entry of this order.

9. 9:00 AM CASE NUMBER: C26-00258
CASE NAME: JESSICA JACKSON VS. 24 HOUR FITNESS USA, LLC
STRIKE PORTIONS OF PLAINTIFF'S COMPLAINT
FILED BY: 24 HOUR FITNESS USA, LLC

TENTATIVE RULING:

Defendant First Class Properties, LLC's Motion to Strike Portions of Plaintiff's Complaint is **GRANTED** in part and **DENIED** in part as follows:

The motion to strike Paragraphs 10(f) and 14a(2) is **GRANTED** with leave to amend. Plaintiff has 15 days from notice of entry of this order to file an amended complaint alleging facts to show malice under Civil Code section 3294(c) and corporate liability under Civil Code section 3294(b). If Plaintiff cannot meet this deadline but later discovers facts supporting a punitive damages claim through discovery, she may file a motion for leave to amend the complaint.

The motion to strike Paragraphs L-1 and GN-1(3), which contain allegations of gross negligence, is **DENIED**.

The motion to strike Paragraph GN-1(5), which contains allegations of statutory violations, is **DENIED**.

Defendant shall prepare the order and file and serve notice of entry of order.

I. Background

This case arises from a slip-and-fall incident occurring on January 23, 2024, at a 24 Hour Fitness facility in Brentwood, California. Plaintiff Jessica Jackson was an invited guest at the facility when she slipped and fell on liquid that had accumulated on the floor as a result of an unaddressed leak, sustaining injuries.

According to the complaint, Plaintiff "was lawfully on Defendants' premises, located at or near 5961 Lone Tree Way, Brentwood, CA 94513, when suddenly and without notice, Plaintiff slipped and fell due to a leak that had accumulated on the floor which presented a dangerous condition." Plaintiff alleges that "Defendants breached their duty to Plaintiff by failing to address, alleviate, remove and/or remedy the dangerous condition and/or activity on Defendants' premises, and by failing to warn people, including Plaintiff, of the presence of such a dangerous condition, despite having adequate time and notice to do so." Plaintiff characterizes this conduct as constituting "a want of even scant care and an extreme departure from the ordinary standard of conduct" and "such outrageous lack of care" in the context of the situation. (Complaint, Prem. L-1.)